

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: September 17, 2026

#	Case Name	Tentative
1.	30-2021-01231249	1. Motion for Attorney Fees Pal vs. US Bank, N.A. Plaintiff Aloke Pal, proceeding <i>in pro per</i> (“Plaintiff”) moves pursuant to Code of Civil Procedure section 382 for attorney fees. Specifically, Plaintiff asks the Court for the following: “Plaintiff requests an order for Plaintiff’s proposes settlement for 1.5 billion US Dollars: A. Approving the requests for attorneys’ fees to proposes Interim Settlement Class Counsel, the Plaintiff, in the amount of \$450,000,000, or 30% of the Settlement Funds; B. Approve reimbursement of litigation expenses of \$22,500,000, or 1.5%; of the Settlement Funds; C. Approve service awards of \$1,000,000 to each of the proposed Class Representatives, to be determined, ‘Save American Workforce,’ for a total amount to be determined. Plaintiff needs this award to pursue the class litigation and organize the interim settlement team.” Defendant US Bank, N.A. (“Defendant”) opposes the motion. The Motion is DENIED. First, Plaintiff’s motion fails to comply with the Code. For example, California Rules of Court, rule 3.1113 expressly states that “[e]xcept in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages.” (Cal. Rules of Court, rule 3.1113, subd. (d).) Plaintiff grossly violates this rule and the Court will not consider arguments made beyond the 15 page limitation. Plaintiff also fails to file a proof of service establishing that the moving papers were properly served. Moving forward, Plaintiff MUST file a proof of service and failure to file a proof of service may result in sanctions since the Court has ordered Plaintiff to comply with the Code of Civil Procedure regarding service. Moving to the merits of the motion, Plaintiff has not established that he is entitled to attorney fees at this time. “A party may not recover attorney fees unless expressly authorized by statute or contract.” (<i>Hom v. Petrou</i> (2021) 67 Cal.App.5th 459, 464 [citing <i>Brown Bark III, L.P. v. Haver</i> (2013) 219 Cal.App.4th 809, 818].)

Plaintiff is not the “prevailing party” such that he is entitled to fees. Code of Civil Procedure section 1032 defines the prevailing party as follows:

“ ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.” (Code Civ. Proc., § 1032, subd. (a)(4).)

Here, no party has obtained a net monetary recovery and there have been no judgments in favor of Plaintiff on the merits of the causes of action alleged related to Plaintiff’s current action, Case No. 2021-01231249.

Plaintiff spends much of his motion arguing that he is entitled to class action fees. The operative Complaint at issue in this case (Case No. 2021-01231249) has not been brought or certified as a class action. As such, Plaintiff is not entitled to any fees that only apply in class action cases.

Moreover, Plaintiff is not entitled to recover fees related to his appeal in Plaintiff’s current action, Case No. 2021-01231249. The Court of Appeal expressly ordered: “In the interest of justice, the parties shall bear their own costs on appeal. (Cal. Rules of Court, rule 8.278(a)(5).)” (ROA 196.)

Plaintiff also appears to seek attorney fees pursuant to contract. “[I]n deciding whether there is a ‘party prevailing on the contract,’ the trial court is to compare the relief awarded on the contract claim or claims with the parties’ demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources.” (*Hsu v. Abbata* (1995) 9 Cal.4th 863, 876.) “The prevailing party determination is to be made only upon final resolution of the contract claims and only by ‘a comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions.’ ” (*Ibid.*) Here, no relief has been awarded regarding Plaintiff’s contract claims in this case (Case No. 2021-01231249) and therefore Plaintiff is not entitled to attorney fees pursuant to contract at this time.

In sum, the Motion for Attorney Fees is **DENIED**.

Clerk to give notice.

2. 30-2025-01519929

Baloy vs. General Motors

**1. Motion for Attorney Fees
2. Order to Show Cause re: Dismissal on Settled Case**

Plaintiff Dennis Baloy (“Plaintiff”) moves for an order awarding him attorney fees pursuant to Civil Code section 1794(d), in the amount of \$37,045.16 against defendant General Motors, LLC (“Defendant”).

Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the

trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of time spent and the amount charged.’ ” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) “Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ ” (*Ibid.*)

Hourly Rates

Ashkan Reza has 14 years of experience and billed at an hourly rate of \$625.00. Lauren Warwick is an attorney with approximately 5 years of experience and billed at an hourly rate of \$425.00. Chris Grigoryan is an attorney with approximately 3 years of experience and billed at an hourly rate of \$425.00.

Based on the Court’s experience with Song-Beverly actions and knowledge of the prevailing rates for similar cases in Orange County, the Court finds the rates to be reasonable.

Hours Expended

Plaintiff’s counsel conducted investigation into the vehicle’s history, prepared pleadings and statutory disclosures, reviewed Defendant’s document production, and prepared for mediation. No depositions were taken. Counsel billed a total of 64.7 hours over the span of the litigation.

As to the amount of time expended, the Court agrees with Defendant that several entries are inflated and/or duplicative. The Court finds that the time spent on 11/21/25 reviewing the proposed stipulation and protective order should be reduced from 0.8 hours to 0.3 hours, the time spent on 12/26/25 drafting meet and confer correspondence should be reduced from 0.8 hours to 0.4 hours, and the 2/2/26, 2/3/26, 2/5/26, 2/6/26, 2/9/26, and 2/11/26 entries for reviewing Defendant’s document production should be reduced from 8.7 hours to 3 hours. This equals a total of \$2,805 in reductions.

The Court finds the remaining time entries to be reasonable.

Multiplier

When considering a request for a multiplier, trial courts may consider “the contingent nature of the fee award, the novelty and difficulty of the questions involved and the skill displayed in presenting them.” (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488.) Factors to be considered when a multiplier is requested include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Here, this was a straightforward Lemon Law action that presented no novel or difficult questions of law and no particularly high degree of skill was required in prosecuting Plaintiff’s claims. Thus, the request for a multiplier is **DENIED**.

In light of the above, the Motion for Attorney Fees is **GRANTED** in the amount of **\$23,934.46**.

Moving party to give notice.

3.	30-2024-01381598	1. Motion to Strike or Tax Costs
	Flores vs. FCA US, LLC	Plaintiff Danielle Flores moves to tax certain costs claimed by defendant FCA US, LLC on the ground that the challenged costs were not reasonably necessary to the conduct of the litigation and are not recoverable. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) Items not mentioned in section 1033.5 may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5(c)(4).) "If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the plaintiff." (<i>Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co.</i> (1963) 217 Cal.App.2d 678, 698.) "The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation.] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable." (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131.) <u>Item 11 - Court Reporter Fees</u> Plaintiff seeks to tax \$13,414.00 in court reporter fees claimed by Defendant across seven reported sessions. Plaintiff argues these fees should be taxed because Defendant has attached no invoices, no court reporter receipts, and no declarations establishing that any of these seven sessions were court-ordered or otherwise satisfy the "as established by statute" requirement. Further, two entries list the same reporter on the same date, November 4, 2025, but no court proceeding took place on that date. Court reporter fees as established by statute are allowable as costs. (Code Civ. Proc., § 1033.5(a)(11).) Fees and charges of a certified shorthand reporter are recoverable as taxable costs by a prevailing party as otherwise provided by law. (Gov. Code, § 68086(d)(2).) Thus, these costs are recoverable by Defendant as the prevailing party here. Defendant appeared on November 3, 2025 at the trailed trial hearing and at a hearing on Plaintiff's Ex Parte Application to Continue Trial. There were no proceedings on November 4 or 5. The invoices attached to Defendant's opposition include \$1,390 in court reporting fees for a job on November 5, \$1,295 for a job on November 3, and \$1,295 for a job on November 4. While it is possible that the invoice referencing November 4 may have a typo and it actually correlates to one of the appearances made on November 3, Defendant provides no explanation as to the November 5 court reporter fees. Because there were no court proceedings on that date, the Court finds that this line item should be taxed. Thus, the Motion to Tax as to <u>Item 11</u> is GRANTED in the amount of \$1,390. The Motion is DENIED as to the remaining court reporter fees. <u>Item 14 - Electronic Filing Fees</u> Plaintiff seeks to tax \$1,140.68 in electronic filing fees because Defendant has submitted no invoices, no itemized billing records, and no documentation of any kind in support of the \$1,140.68 figure. Plaintiff argues that vendor service fees, processing surcharges, and convenience fees are not court-imposed and not recoverable under section 1033.5(a)(14) and Defendant has included charges for filings that are not reasonably necessary to the litigation such as association of counsel notices, errata filings, and change of address notifications.

“Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” (Code Civ. Proc., § 1033.5(a)(14).) Here, as Defendant points out, the Court requires electronic filing by represented parties. Thus, the filing service fees claimed by Defendant are recoverable. Further, filings such as notices of association of counsel, notices of errata, and notices of change of address are reasonably necessary to the litigation. Thus, the Motion to Tax as to Item 14 is **DENIED**.

Item 15 - Other

Plaintiff seeks to tax \$150.15 in "Other" costs under Line 15 on the ground that Defendant has not shown that these discretionary costs were both reasonably necessary and reasonable in amount and parking, mileage reimbursement, meals, CARFAX vehicle history reports (three separate charges), and document retrieval are not recoverable Code of Civil Procedure section 1033.5(b)(2).

Plaintiff’s argument that section 1033.5(b)(2) expressly precludes costs for travel expenses of attorneys, parking, or meals is incorrect. Section 1033.5(b)(2) precludes “[i]nvestigation expenses in preparing the case for trial.”

While section 1033.5(b)(2) does not preclude travel or parking costs, it does preclude the CARFAX costs, which Defendant concedes were “investigative costs.”

Further, while Plaintiff erroneously cited to section 1033.5(b)(2) for the incorrect proposition, Plaintiff is correct that attorney meal costs and local travel costs are generally not recoverable. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 [“The only meal expenses statutorily allowable are those for jurors while they are kept together during trial and deliberation.”]; *id.* at p. 775 [“Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation.”].)

Thus, the Motion to Tax as to Item 15 is **GRANTED** as to the claimed mile reimbursement, meal, parking, and CARFAX costs. The Motion is **DENIED** as to the remaining other costs.

Moving party to give notice.

5. 30-2025-01527897

209 Group, LLC vs.
Seibert

1. Case Management Conference
2. Motion for Leave to File Amended Cross-Complaint

Defendants Christian Seibert, Osmar Aguilar, and Eisley Creative LLC, hereby respectfully seek this Court’s leave to file a Cross Complaint against Plaintiffs 209 Group, LLC, Novation Productions, LLC and additional party Tom Armbruster.

MP cites to CCP§428.50 as the enabling authority for the relief requested.

Code Civ. Proc., § 428.50

- (a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.
- (b) Any other cross-complaint may be filed at any time before the court has set a date for the trial.
- (c) A party shall obtain leave of court to file any cross-complaint except one filed within time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

		Here, Moving Party attempted to file a Cross-Complaint at the same time as filing their Answer to the Complaint. However, that document was rejected by the Court, thus necessitating this motion. (ROA 17). While the Responding party argues about procedural defects with the Motion, none of these alleged defects prejudice Responding Partys (“RP”). Although the Notice of Motion does not set forth the date, time, and location of the motion in the notice itself (CRC 3.1110(b)), that information is set forth in the Caption on the front page of the motion. Also, although RPs argue no proof of service was attached to the Motion, this Court’s files establish the motion (ROA 27) and exhibit list (including the proposed Cross-Complaint) (ROA 21) were e-served on 2/5/2026 (ROAS 23,25.) As such, the Motion is GRANTED. Proposed Cross-Complaint to be separately filed within 7 days of this order. Moving Party is to give notice.
6.	30-2025-01506656 Martinez vs. Kaufman	1. Case Management Conference 2. Demurrer to Complaint In light of the pending motion to consolidate, motion for leave to file cross-complaint and status conference re: settlement in related case No. 2024-01393434, styled <i>Kaufman v. Martinez</i>, the hearing on this motion is CONTINUED to October 22, 2026 at 1:30 p.m. in Department C34. Clerk to give notice.
7.	30-2024-01415577 Mejorado vs. General Motors, LLC	1. Motion to Strike or Tax Costs 2. Order to Show Cause re: Dismissal on Settled Case Defendant General Motors LLC (“Defendant”) moves to strike or tax certain costs claimed by plaintiffs Eric Mejorado and Elizabeth Mejorado formerly known as Elizabeth Aguilar (“Plaintiffs”), which Defendant argues were not reasonably incurred or necessary in the conduct of the litigation. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) <u>Item 2 – Jury Fees</u> Defendant argues \$154.00 should be taxed because jury fees are only recoverable when a trial occurs and no jury was ever convened in this matter. Defendant cites <i>Perko’s Enterprises, Inc. v. RRNS Enterprises</i> (1992) 4 Cal.App.4th 238 but that case did not involve the recovery of jury fees. Jury fees are expressly recoverable under Code of Civil Procedure section 1033.5(a)(1). Thus, the Motion to Tax as to Item 2 is DENIED. <u>Item 1 – Filing Fees</u> Defendant argues \$93.48 in filing fees associated with Plaintiffs’ Motion to Compel should be taxed because these were optional costs that counsel elected.

Plaintiffs’ Motion to Compel was granted in part and denied in part. Characterizing the filing of at least partially meritorious discovery motion as optional is disingenuous, as is Defendant’s contention that the Motion to Compel served no purpose other than to increase Plaintiffs’ counsel’s costs. Plaintiffs incurred these filing fees to protect their rights with regard to discovery and ensure Defendant complied with its discovery obligations. Thus, these filing fees were reasonably necessary to the conduct of the litigation.

Defendant also moves to tax \$42.44 from the claimed filing fees, arguing that these EFM and payment processing fees are unnecessary luxuries and did not advance Plaintiffs’ case. “Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” (Code Civ. Proc., § 1033.5(a)(14).) Here, electronic filing by represented parties is required. Thus, the EFM and paying processing fees were reasonably necessary to the conduct of the litigation. Further, they are reasonable in amount.

Thus, the Motion to Tax as to Item 1 is **DENIED**.

Item 8 – Expert Fees

Defendant argues \$275.00 should be taxed from the claimed expert witness fees because it was billed for case intake and analysis and was not reasonably incurred in the conduct of the litigation. Defendant argues this kind of pre-evaluation intake charge is the type of overhead expense that firms routinely absorb. Defendant also argues that \$116.00 billed for travel time must be taxed because expert travel is a routine overhead cost of doing business for an inspection and the cost was not reasonably incurred.

The Court finds that the case intake and analysis cost was incurred in Plaintiffs’ retention of an expert for the vehicle inspection. Plaintiffs’ retention of an expert for the inspection is plainly reasonable and Defendant’s argument that this cost was not reasonably incurred is not persuasive.

As to the latter argument, Defendant cites *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761. While *Ladas* states that “[r]outine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of the litigation” (*id.* at pp. 775-776), Plaintiffs’ expert here is not an attorney or firm employee. Further, an expert must attend a vehicle inspection in person and, therefore, the Court finds the travel costs were required and reasonably necessary.

Thus, the Motion to Tax as to Item 8 is **DENIED**.

9. 30-2025-01518230

**McKay vs. California
Department of Parks
and Recreation**

**1. Case Management Conference
2. Demurrer to Complaint
3. Motion to Strike Portions of Complaint**

Defendants California Department of Parks and Recreation and Brian Carlson (“Defendants”) filed a demurrer and motion to strike, attacking the original complaint filed on October 10, 2025.

The demurrer and motion to strike are **OFF CALENDAR AS MOOT** pursuant to Code of Civil Procedure section 472(a).

Code of Civil Procedure section 472(a) states:

		“A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” (Code Civ. Proc., § 472, subd. (a).) Here, the last day to file an opposition to the demurrer and motion to strike was September 3, 2026. On September 2, 2026, Plaintiff Zachary McKay filed a First Amended Complaint. (ROA 41.) Given the above, the demurrer and motion to strike are OFF CALENDAR AS MOOT. Plaintiff to give notice.
10.	30-2026-01563392 Everon, LLC vs. Federal Technology Solutions, Inc	1. Case Management Conference 2. Motion-Other (for Order Declaring Rights to Withheld Funds Pursuant to Civil Code Section 9408) Plaintiff Everon, LLC’s (“Everon”) Motion for Determination of Rights Pursuant to Civil Code § 9408 is DENIED. Everon seeks an order pursuant to Civil Code section 9408 for a determination of rights of the parties following the service of a stop payment notice, affidavit, and counter-affidavit. More specifically, Everon seeks an order that funds withheld by Newport pursuant to a stop payment notice from Defendant Federal Technology Solutions, Inc. (“FTSI”) in the amount of \$429,367.06 be returned to Everon. Everon seeks relief pursuant subsections (c) and (d) of Section 9400, which provides that a direct contractor may obtain release of funds withheld pursuant to a stop payment notice under the summary proceeding provided by statute on any of the following grounds: (c) the amount of the claim stated in the stop payment notice is excessive (d) there is no basis for the claim stated in the stop payment notice (Civ. Code §9400.) At the hearing on a motion under this section, the direct contractor, in this case Everon, has the burden of proof. The Court finds that Everon has not met its burden with respect to subsection (d)—i.e., that there is <i>no</i> basis for the claim stated in the stop payment notice—because Everon only contends that part of the amount requested is improper. An amount that is too high is not considered <i>invalid</i>—the amount can be reduced. (<i>See, e.g., Basic Modular Facilities, Inc. v. Ehsanipour</i> (1999) 70 Cal.App.4th 1480, 1485 (trial court has authority to reduce an excessive lien to its proper amount; actual amount due presents a question of fact for the trial court).) Further, as to Everon’s claim that the amount stated in the stop payment notice is excessive, the Court is not persuaded by Everon’s evidence. The crux of the dispute is that Everon claims FTSI is improperly seeking payment for work that was included in its bid, but which FTSI now seeks a change work order for (i.e., payment beyond the amount set forth in the bid). FTSI denies that this work, which involved conduit installation, was part of its bid, as FTSI contends that the information

provided to FTSI to prepare its bid did not specify that FTSI was to install extensive conduit. FTSI also points out that its bid does not reference conduit.

To support its version of the events, Everon heavily relies on a sentence found in Paragraph 8 of FTSI's counter-affidavit. However, the sentence appears to contain a typographical error. It reads:

Conduit installation was included in FTSI's accepted bid or its contract with Everon.

It is clear to the Court, based on the grammatical structure of the sentence, that it was supposed to read "Conduit installation was not included in FTSI's accepted bid or its contract with Everon." Thus, the Court does not find this purported evidence of an admission persuasive.

Everon's argument that Newport already rejected FTSI's requests for change orders regarding conduit installation does not change the outcome. As explained in *Ted Jacob Engineering Group, Inc. v. The Ratcliff Architects*, cited by FTSI, a contractor faced with a substantial change in its originally contracted scope of work, who is unable to successfully negotiate a price for that additional work, may elect to continue to work and reserve its right to subsequently obtain a judicial determination as to the value of the changes. (*Ted Jacob Engineering Group, Inc. v. The Ratcliff Architects* (2010) 187 Cal.App.4th 945, 966.) The *Ted Jacob* court elaborated:

So long as the other contracting party continues to demand performance of the increased scope of work, and in the absence of any conflicting provision of the contract, the contractor may continue to work after unsuccessful negotiations and

subsequently recover the value of that work. To hold otherwise would compel a contractor to walk off the job in the face of what it believes to be major changes in the scope of work required of it, with significant consequences if its judgment is later proven wrong, or alternatively forfeit any right to seek compensation for that work, regardless of the extent of the additional burdens imposed.

(*Ibid.*)

Accordingly, the motion is **DENIED**.

Clerk to give notice.

11. 30-2026-01561514
**Karim vs. American
Tax Defense**

**1. Case Management Conference
2. Motion to Be Relieved as Counsel of Record**

The unopposed motion of attorney Arash S. Khosrowshahi, an attorney with Laurel Employment Law, APC, counsel of record for Plaintiff Sikandar Karim in this action, is **GRANTED**.

Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362.

The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client.

* NOTE: The next hearings on this matter are Defendant's Demurrer to Complaint and Motion to Strike, and they are set for November 12, 2026 at 1:30 p.m. in Department C34.

Moving attorney to give notice.

12.	30-2024-01399839 Lakeview Village Corp. vs. Coury	1. Motion for Bifurcation Motion for Bifurcation is denied without prejudice to be determined by the trial Judge before the start of trial. The order of proof at trial is generally <i>discretionary</i> with the trial judge. [Ev.C § 320—“Except as otherwise provided by law, the court in its discretion shall regulate the order of proof”]. Given the multiple pleadings at issue here consisting of both equitable and legal claims and defenses, the Judge who ultimately presides over the trial should determine the order of proof. Additionally, the Notice of Motion is defective and does not tell the Court precisely which causes of action or affirmative defenses should be heard first. [CCP § 1010; CRC 3.1110(a)] Clerk to give notice.
13.	30-2025-01518357 Carter vs. Built to Perfection, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories Plaintiff Judith A. Carter (“Plaintiff”) moves to compel defendant Built to Perfection, Inc. (“Defendant”) to serve further responses to Plaintiff’s Form Interrogatories, Set One, Nos. 15.1, 17.1, and 50.1. <u>No. 15.1</u> In response to No. 15.1, Defendant provides no facts upon which it bases any of its denials or affirmative defenses. Nor does it provide the identities of any persons who have knowledge of the pertinent facts or identify any documents in support. While Defendant argues the interrogatory is premature, the Court finds this argument unpersuasive, as Defendant must have at least some knowledge of the basic facts underlying this action that would allow it to provide some substantive response. To the extent Defendant claims that the subcontractor entity that actually performed the roofing work is the only entity that can answer the interrogatory, further response indicating as such is warranted. Thus, the Motion to Compel as to No. 15.1 is GRANTED. <u>No. 17.1</u> Defendant’s responses to Requests for Admission Nos. 39 and 40 were not unqualified admissions yet Defendant did not include a response to Interrogatory No. 17.1 in relation to those Requests. The Court finds that further response to No. 17.1 to incorporate those Requests is warranted. Defendant provided the same response to No. 17.1 in relation to Requests for Admission Nos. 16, 17, 21-23, 25, 29-32, 36, 37. Plaintiff argues further response to No. 17.1 as to these Requests is warranted because the Requests concern different topics and issues and Defendant’s identical three sentence response is evasive. However, review of the Requests and response to No. 17.1 shows that Defendant’s response addresses each issue raised in the Requests (damage to the property, breach of the agreement, sufficiency of the work performed). Thus, the Court does not agree that the response is evasive. Based on the above, the Motion to Compel as to No. 17.1 is GRANTED as it relates to Requests 39 and 40 and DENIED as to the remaining Requests. <u>No. 50.1</u> In response to No. 50.1, Defendant states it is producing its entire job file, including any written agreements entered into with Plaintiff. Defendant contends no further response is warranted and cites to Code of Civil Procedure section 2030.230. That section provides, in relevant part: If the answer to

		an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. Defendant's answer is inadequate under section 2030.230, as Defendant has not specified the writings from which an answer to the Interrogatory may be derived or ascertained. Moreover, Defendant has failed to respond to each subpart of the Interrogatory. Thus, further response is warranted. The Motion to Compel as to No. 15.1 is GRANTED. <u>Monetary Sanctions</u> Monetary sanctions must be imposed unless the Court finds that Defendant acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Defendant's failure to properly respond to Nos. 15.1 and 50.1 and 17.1 as it relates to Requests for Admission Nos. 39 and 40 was without substantial justification. Thus, the Court GRANTS monetary sanctions in favor of Plaintiff against Defendant and Defendant's counsel, jointly and severally, in the amount of \$1,500.00. Further responses as ordered above are to be served within 15 days from the date of this order. Monetary sanctions are to be paid within 30 days from the date of this order. Moving party to give notice.
14.	30-2024-01402013 Lara vs. Volkswagen Group of America, Inc	1. Motion to Compel Deposition (Oral or Written) Defendant Volkswagen Group of America, Inc. ("Defendant" or "VWGoA") moves the Court for an Order compelling Plaintiff Manuel Lara to appear for a deposition by remote electronic means and produce documents within fifteen (15) days, or a date that the Court otherwise deems appropriate. Pursuant to CCP§2025.450 (a), "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." Here, on April 29, 2026, Defendant served its Notice of Deposition of Mauel Lara ("NOD"), noticing the remote deposition for May 18, 2026. (Decl. of Konrad¶4.) On May 11, 2026, Plaintiff Manuel Lara electronically served objections to the NOD, indicating that he will not appear for the deposition due to unavailability and to meet and confer with Plaintiffs' counsel to schedule the deposition on a mutually agreeable date. (Id¶5.)

		On May 28, 2026, Attorney Konrad sent meet and confer correspondence via e-mail to Plaintiffs’ counsel, requesting Plaintiffs’ to provide availability by June 4, 2026 for the deposition to go forward on or before June 26, 2026. (Id.¶6). On June 4, 2026 around 6:30 p.m., Plaintiffs’ counsel advised that Plaintiffs were available for deposition on July 31, 2026. (Id.¶8.) At that time, the discovery cut off was August 8, 2026. This motion was filed 6/9/2026. (ROA 92) Here, Plaintiff clearly has the burden to establish that its objection to the Deposition notice has merit. Plaintiff has not sustained that burden, nor has he established how offering one date, two months after the original deposition date, and 9 days before the discovery cut off date, was a reasonable compromise. Based on applicable law and the facts herein, the Motion is GRANTED and Plaintiff Manuel Lara is ordered to appear at his deposition on the date agreed to by the parties- currently September 17, 2026 (or on another mutually agreed upon date within the next 14 days). No sanctions were requested. Clerk to give notice to Defendant(s) and Defendant(s) to give notice to all other parties.
16.	30-2025-01463753 Zannitto vs. Ford Motor Company	1. Motion for Summary Judgment and/or Adjudication Defendants Ford Motor Company and Ken Grody Ford Buena Park (“Defendants”) move for summary judgment or adjudication as to all six causes of action alleged in the Complaint, which include the: (1) first cause of action for violation of Civil Code section 1793.2(d) against Defendant Ford, (2) second cause of action for violation of Civil Code section 1793.2(b) against Defendant Ford, (3) third cause of action for violation of Civil Code section 1793.2(a)(3) against Defendant Ford, (4) fourth cause of action for breach of implied warranty of merchantability pursuant to Civil Code section 1791.1, 1794, and 1795.5 against Defendant Ford, (5) fifth cause of action for negligent repair against Defendant Ken Grody, and (6) sixth cause of action for fraudulent inducement – concealment against Defendant Ford. Plaintiffs Frank Zannitto and Sharon Zannitto (“Plaintiffs”) oppose the motion. Defendants present 8 issues in the motion. The Court will address each issue. 1. FIRST CAUSE OF ACTION: VIOLATION OF CIVIL CODE SECTION 1793.2(D) AGAINST DEFENDANT FORD Plaintiffs’ first cause of action is for violation of Civil Code section 1793.2(d). The first cause of action is only alleged against Defendant Ford. Defendants argues that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle. Defendant cites to <i>Rodriguez v. FCA US, LLC</i> (2024) 17 Cal.5th 189 in support of the argument that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

The Court agrees.

The primary holding in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 is that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2) ’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196 [underline added].) The court held that “the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act’s provisions distinguishing between new and used goods — means a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (*Id.*, at 206 [emphasis added].)

Thus, to be considered a new motor vehicle under the Act, a “new car” warranty must have been “*issued with the sale*” of the vehicle. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [emphasis in original] and 199-200 [“the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is most naturally understood to mean other vehicles for which such a warranty is issued with the sale. (§ 1793.22, subd. (e)(2).)”].)

In issuing a “new car” warranty to a vehicle that is not technically new, “manufacturers (or their dealer-representatives) treat them as such upon sale by providing the same type of manufacturer’s warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

“For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.) “In both cases, the Act’s protections are premised on an express warranty arising from the product’s sale.” (*Ibid.*)

Here, Defendant establishes and Plaintiffs agree that the vehicle at issue had 31,516 miles on its odometer at the time of purchase. The parties also agree that the distributor Defendant Ken Grody Ford sold the vehicle to Plaintiffs as a “certified pre-owned” vehicle.

The parties disagree, however, about whether the warranties that accompany Plaintiffs’ vehicle qualify the vehicle for recourse pursuant to the Song Beverly Act. Plaintiffs argue that “Ford represented that its Blue Advantage certified vehicles carry manufacturer-issued warranty coverage, including a powertrain limited warranty of seven years or 100,000 miles, coverage still in force, on its face, when Ford authorized both repairs at issue. (PAMF 30; Flores Decl. ¶ 11, Ex. H.)”

The Court is not persuaded by Plaintiffs’ argument. *Rodriguez* expressly holds that a “new car” warranty must accompany the used vehicle at the time of the sale. Plaintiffs proffer no evidence that they were given “the same type of manufacturer’s warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

As Defendant points out, other Courts have adopted this interpretation of the holding in *Rodriguez*. For example, in *Crescencio v. Ford Motor Company* (C.D. Cal. 2025) 811 F.Supp.3d 1132, the court rejected the argument that certified preowned warranties constitute “a new car warranty” such that a plaintiff may recovery under the Song Beverly Act based on the certified preowned warranties provided. (*Id.* at 1138 [citing *Dubrosky v. Am. Honda Motor Co.*, No. CV 24-09153-HDV (ASx), 2025 WL 2451031, at *9 (C.D. Cal. Aug. 13, 2025) (dismissing SBA claim because “Plaintiffs fail to

adduce any authority indicating that a certified pre-owned warranty constitutes “a *new* car warranty” (emphasis in the original)); *In re Coordination Proceeding Special Title Rule 3.550 Ford Motor Warranty Cases*, 2025 WL 1422438, at *2–3, 2025 Cal. Super. LEXIS 9146, at *7 (May 14, 2025) (sustaining demurrer as to CPO warranty theory because “[t]o qualify as a “new motor vehicle,” the manufacturer must have issued, as part of the sale, the manufacturer’s new-car warranty, not a “new” warranty on a used car.”)]; see also *Huerta v. General Motors* (C.D. Cal., Mar. 16, 2026, No. CV 25-7535-MWF (RAOX)) 2026 WL 789952, at *2 [“Song-Beverly Act’s express warranty provisions do not apply to used vehicles.”].)

Plaintiffs have not established that they received a new car warranty for their certified preowned vehicle. Rather, the evidence Plaintiff submitted in opposition, particularly Exhibit H, establishes that the warranties granted under the Ford Blue Advantage are different than those granted to new vehicles. In fact, in Exhibit H, Ford’s website expressly states “[t]he primary differences between Gold and Blue Certified used vehicles are age and mileage . . . Gold vehicles are up to 6 years old with less than 80,000 miles. Blue vehicles are up to 10 years old with less than 120,000 miles. As the charts show, the warranty coverages differ, but there are many similar ownership benefits.”

In opposition, Plaintiffs cite to *Kiluk v. Mercedes-Benz USA LLC* (2019) 43 Cal.App.5th 334. In *Kiluk*, “Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer's obligations are the ‘same’ as a manufacturer under section 1793.2.” (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 340.)

Since *Kiluk*, however, California’s Supreme Court has found that used cars are not entitled to recovery under the Song-Beverly Act unless they are given “new car” warranties – not new warranties to a used car. Thus, under the facts of the current case, whether Ford took on the role of a retailer is irrelevant for this cause of action. The holding in *Kiluk*, therefore, does not impact this Court’s holding on the motion for summary judgment at hand.

Here, Defendant establishes that Plaintiffs did not receive a new car warranty at the time of purchase. As such, Plaintiffs’ vehicle is not a candidate for relief pursuant to this section of the Song Beverly Act.

Given the above, the Motion for Summary Adjudication is **GRANTED** as to the first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

2. SECOND CAUSE OF ACTION: VIOLATION OF CIVIL CODE SECTION 1793.2(B) AGAINST DEFENDANT FORD

Plaintiffs’ second cause of action is for violation of Civil Code section 1793.2(b). The second cause of action is only alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their second cause of action for violation of Civil Code section 1793.2(b) because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

For the reasons discussed above and pursuant to *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the second cause of action for violation of Civil Code section 1793.2(b)

3. THIRD CAUSE OF ACTION: VIOLATION OF CIVIL CODE SECTION 1793.2(A)(3) AGAINST DEFENDANT FORD

Plaintiffs’ third cause of action is for violation of Civil Code section 1793.2(a)(3). The third cause of action is only alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their third cause of action for violation of Civil Code section 1793.2(a)(3) because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

For the reasons discussed above and pursuant to *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the third cause of action.

4. FOURTH CAUSE OF ACTION: BREACH OF IMPLIED WARRANTY OF MERCHANTABILITY PURSUANT TO CIVIL CODE SECTION 1791.1, 1794, AND 1795.5 AGAINST DEFENDANT FORD

Plaintiffs’ fourth cause of action is for breach of implied warranty of merchantability pursuant to Civil Code section 1791.1, 1794, and 1795.5. The fourth cause of action is only alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their fourth cause of action for breach of implied warranty of merchantability because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

The court in *Ruiz Nunez v. FCA US LLC* expressly held that “[i]t is evident from these [Song Beverly Act] provisions that only distributors or sellers of *used* goods—not manufacturers of *new* goods—have implied warranty obligations in the sale of *used* goods.” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing Civ. Code, § 1795.5].)

“As one court has put it, the Song-Beverly Act provides similar remedies (to those available when a manufacturer sells new consumer goods) ‘in the context of the sale of used goods, except that the manufacturer is generally off the hook.’ ” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 339 (Song-Beverly Act “generally binds only distributors and retail sellers in the sale of used goods”)]). “[T]he assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities.” (*Ibid.*) An exception arises “[w]here the manufacturer sells directly to the public . . . [and] takes on the role of a retailer.” (*Ibid.*)

Here, Plaintiffs did not buy the certified preowned vehicle from Ford, Ford did not sell the vehicle directly to Plaintiffs, and therefore Ford was not a party to the sale of the vehicle at issue. Rather, Plaintiffs purchased the vehicle from Ken Grody Ford Buena Park. Case law expressly establishes that only distributors or sellers of used goods have implied warranty obligations in the sale of a used good. Ford did not sell the vehicle to Plaintiff and therefore did not “take on the role of a retailer” in this transaction.

For the reasons discussed above and pursuant to *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the fourth cause of action for breach of implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5.

5. FIFTH CAUSE OF ACTION: NEGLIGENT REPAIR AGAINST DEFENDANT KEN GRODY

Plaintiffs' fifth cause of action is for negligent repair. The fifth cause of action is only alleged against Defendant Ken Grody.

Defendants argue that Plaintiffs cannot establish their fifth cause of action for negligent repair against Ken Grody Ford Buena Park because it is barred by the economic loss rule.

In *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, the court held:

“[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21; see also *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 482-83; and *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 17-19.)

“To apply the economic loss rule, we must first determine what the product at issue is. Only then do we find out whether the injury is to the product itself (for which recovery is barred by the economic loss rule) or to property other than the defective product (for which plaintiffs may recover in tort).” (*Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483.)

Importantly, the economic loss rule “applies to bar tort recovery for negligently inflicted economic losses unaccompanied by physical or property damage under the limits recognized in *Sheen*.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.)

Here, Plaintiffs only allege that Defendant Ken Grody “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards.” (Complaint, ¶ 61.) Plaintiffs allege that they presented their vehicle “to an authorized repair facility for a nonconformity.” (Complaint, ¶ 17.)

Plaintiffs do not allege any property damage to the vehicle that did not already exist at the time that the vehicle was presented to Defendant for repair. Accordingly, Plaintiffs do not allege that Defendant Ken Grody's conduct in attempting to repair the vehicle caused the injury to the vehicle.

Rather the allegations and the evidence before the Court establish that Plaintiffs presented the allegedly defective vehicle to Defendant Ken Grody and Defendant Ken Grody was unable to repair the alleged defect (the defect that existed before the repair attempts and not because of the repair attempts). No where does Plaintiff allege or establish that the repair attempts *caused* the injury to property.

As such, the economic loss rule applies to Plaintiff's fifth cause of action for negligent repair. The Motion for Summary Judgment is **GRANTED** as to the fifth cause of action for negligent repair.

6. SIXTH CAUSE OF ACTION: FRAUDULENT INDUCEMENT – CONCEALMENT AGAINST DEFENDANT FORD

Plaintiffs’ sixth cause of action is for fraudulent inducement – concealment. The sixth cause of action is only alleged against Defendant Ford.

Defendants argue that (1) Plaintiffs cannot establish their sixth cause of action for fraudulent inducement – concealment because they cannot establish that Defendant Ford had knowledge of a defect at the time of sale, (2) Plaintiffs cannot establish their sixth cause of action for fraudulent inducement – concealment because they cannot establish that Defendant Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale, and/or (3) Plaintiffs cannot establish their sixth cause of action for fraudulent inducement – concealment because they cannot establish an independent tort duty to except it from the economic loss rule.

The Court finds that the sixth cause of action for fraudulent inducement – concealment fails because Defendant Ford did not have a duty to disclose. The Court need not address the merits of the other issues and arguments presented by Defendant.

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40; see also *Lazar v. Superior Court* (1996) 12 Cal 4th 631, 638.)

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment).” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

“Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as “between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

“All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41 [citing *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337].) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41 [citing *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312].)

Here, the evidence before the Court establishes that Plaintiffs and Defendants did not have a “preexisting relationship” that created a duty for Defendant to disclose the alleged nonconformity or defect the Plaintiffs. The evidence establishes that Defendant was not a party to the contract and was not the entity that sold the vehicle to Plaintiffs. Case law expressly states that such a duty to disclose

		does not exists between a defendant and the public at large. For had no direct dealings with Plaintiffs. Given these facts and the case law above, there was no transactional relationship between Plaintiffs and Defendant that created a duty to disclose.
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		As such, the Motion for Summary Judgment or Adjudication is GRANTED as to the sixth cause of action for fraudulent inducement – concealment.
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		Moving party to give notice.
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